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Order QR

IN THE HIGH COURT OF JUDICATURE AT MADRAS

DATED: 23-10-2026

CORAM

THE HON'BLE MR.JUSTICE N.RAMESH

CRL OP No. 30800 of 2026

CNR:{HCMA012564132026}

Case QR

1. Deepak
2. Rajkumar

..Petitioner

Vs

The State Rep. By,
The Inspector of Police
Ranipet Police Station,
Ranipet District.
Crime No.304 of 2026.

..Respondent

PRAYER : Criminal Original Petition filed under Section 483 of Bharatiya Nagarik Suraksha Sanhita, 2023, to enlarge the Petitioners on bail in connection with Cr.No.304 of 2026 on the file of the Respondent Police.

For Petitioner: P.Raman

For Respondent: Mrs.R.S.Indira
Additional Public Prosecutor

ORDER

The petitioners, who were arrested and remanded to judicial custody on 28.09.2026 for the alleged offence under Sections 8(c), 20(b)(ii)(A) of Narcotic Drugs and Psychotropic Substances Act, 1985 and 123 of BNS, 2023 in Crime No. 304 of 2026 on the file of the respondent police, seeks bail.

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2. The case of the prosecution is that on 28.09.2026, based on the secret information, the respondent police went to the spot and found that petitioners were found to be in illegal possession of 350 grams of Ganja, 8 Tapendatol tablets and one syringe. Hence, the case.

3. The learned counsel appearing for the petitioners submitted that the petitioners have been falsely implicated in the present case and that they have not committed any offence as alleged by the prosecution. He further submitted that the petitioners are ready to abide by any stringent conditions that may be imposed by this Court. Hence, he prays for grant of bail to the Petitioners.

4. The learned Additional Public Prosecutor appearing for the Respondent Police reiterated the prosecution case and submitted that one previous case is pending against the 1st petitioner and no previous case is pending against the 2nd petitioner. Hence, she opposed for grant of bail to the Petitioner.

5. Heard the learned counsel appearing for the petitioners, the learned Additional Public Prosecutor for the respondent Police and perused the materials available on record.

6. Considering the facts and circumstances of the case; taking note of the submission made by the learned Additional Public Prosecutor; considering the totality of the circumstances and considering the period of incarceration of the petitioner, this Court is inclined to grant bail to the petitioners, subject to certain conditions.

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7. Accordingly, the petitioners are ordered to be released on bail on their executing a separate bond for a sum of **Rs.25,000/- (Rupees Twenty Five Thousand only)** with **two sureties each**, for a like sum to the satisfaction of the **learned District Munsif cum Judicial Magistrate, Ranipet** and on further conditions that:

[a] the sureties shall affix their photographs and Left Thumb Impression in the Application for Surety ship [Judicial Form No.46 annexed to 'The Criminal Rules of Practice, 2019']. The learned Magistrate shall obtain a copy of any one of the identity proofs to ensure their identity;

[b] the petitioners shall report before the respondent police daily at 10.30 a.m., until further orders.

[c] the petitioners shall not abscond either during investigation or trial;

[d] the petitioners shall not tamper with the evidence or witness either during investigation or trial;

[e] On breach of any of the aforementioned conditions,

the learned Magistrate/Trial Court is entitled to pass appropriate orders against the petitioners in accordance with law as if the aforementioned conditions have been imposed and the petitioners released on bail by the learned Magistrate/Trial Court himself as laid down by the Hon'ble Supreme Court in **P.K.Shaji vs. State of Kerala [(2005)13 SCC 283];**

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[f] If the accused thereafter absconds, a fresh FIR can be registered under Section 269 of B.N.S.

23.10.2026

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Note:

1. Registry is directed to forthwith upload this order in the Official Website of this Court.

2. All concerned to act on this order being uploaded in Official Website of this Court without insisting on certified hard copies. To be noted, this order when uploaded in the official website of this Court will be watermarked and will also have a QR code.

To:

1.The District Munsif cum Judicial Magistrate, Ranipet

2. The Inspector of Police
Ranipet Police Station,
Ranipet District.

3.The Superintendent, Central Prison, Vellore.

4.The Public Prosecutor, High Court of Madras.

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N.RAMESH J.

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